3818 Temporary

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other Purposes", approved October 6th, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement conveyed, transferred, assigned and delivered to him as the property of F. C. M. KUNZ and JEANETTE KUNZ, residing in Austria, whom he did after investigation determine to be enemies, within the purview of said Act as amended, which said real estate is described as follows, to-wit:

> All that certain lot, tract or parcel of land and premises, situate, lying and being in Ventnor City, in the County of Atlantic and State of New Jersey, bounded and described as follows:
>
> Beginning in the southerly line of Ventnor Avenue (said Ventnor Avenue being eighty feet wide) where the same is intersected by the easterly line of Newport Avenue and extending: thence (1) southwardly in the easterly line of Newport Avenue one hundred and sixteen feet; thence (2) eastwardly and parallel with Ventnor Avenue fifty feet; thence (3) northwardly and parallel with Newport Avenue one hundred and sixteen feet to the southerly line of Ventnor Avenue (eighty feet wide); thence (4) westwardly along the southerly line of Ventnor Avenue fifty feet to the place of beginning.

My reasons for the foregoing determination, order, rule and regulation are:

(*a*) The property is unimproved and produces no income;

(*b*) An advantageous offer for the purchase of said property has been received by the Alien Property Custodian;

(*c*) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience which should be avoided.

WARREN G HARDING

THE WHITE HOUSE,
April 9, 1923.

[No. 3818.]

GOVERNMENT PRINTING OFFICE